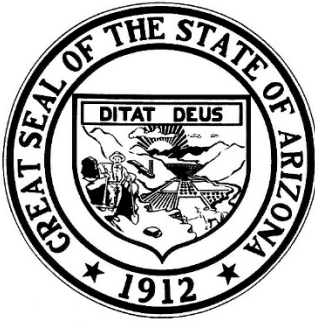




**Bill Number: H.B. 2494**

**Shope Floor Amendment**

**Reference to: House engrossed bill**

**Amendment drafted by: Leg. Council**

## **FLOOR AMENDMENT EXPLANATION**

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1. Requires the construction and operation of a thermal or nonthermal electric generating unit to comply with all air quality standards and with all decommissioning, site restoration, financial assurance and liability insurance requirements.
2. Allows the owner or operator of a proposed nonthermal electric generating unit that is not subject to the requirements of the Power Plant and Transmission Line Siting Committee to voluntarily apply for a certificate of environmental compatibility, if the proposed nonthermal electric generating unit will be located on:
  - a) private land that is located in a county with a population between 400,001 persons and 599,999 persons; or
  - b) state trust lands that are located in a groundwater transportation basin.
3. Stipulates that, if the outlined private land is former state trust lands, the owner or operator of the proposed nonthermal electric generating unit must have acquired the former state trust lands at a public auction that was open to all eligible bidders from all industries and commercial land uses.
4. Prohibits the Commissioner of the Arizona State Land Department, if the owner or operator of the proposed nonthermal electric generating unit acquired the former state trust land at an auction as outlined, from having taken, at any point during the public auction or before the public auction, any action, including imposing any restrictions or qualifications on eligible bidders or imposing any requirements or minimums on appraisals, that had the effect of increasing the probability of a bidder from one industry or commercial land use winning the public auction instead of a bidder from another industry or commercial land use.
5. Makes technical and conforming changes.

SHOPE FLOOR AMENDMENT  
SENATE AMENDMENTS TO H.B. 2494  
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 11-812, Arizona Revised Statutes, is amended to  
3 read:

4 11-812. Restriction on regulation; exceptions; aggregate  
5 mining regulation; definitions

6 A. ~~Nothing contained in~~ Any ordinance authorized by this chapter  
7 ~~shall~~ MAY NOT:

8 1. Affect existing uses of property or the right to its continued  
9 use or the reasonable repair or alteration of the property for the purpose  
10 for which used at the time the ordinance affecting the property takes  
11 effect.

12 2. Prevent, restrict or otherwise regulate the use or occupation of  
13 land or improvements for railroad, mining, metallurgical, grazing or  
14 general agricultural purposes, if the tract concerned is five or more  
15 contiguous commercial acres. For the purposes of this paragraph:

16 (a) "General agricultural purposes" includes agritourism as defined  
17 in section 3-111, but does not include any of the following:

18 (i) Food establishments **THAT ARE** under the authority of the  
19 department of health services pursuant to section 36-136, subsection I **AND**  
20 that are associated with an agritourism business.

21 (ii) Rodeo events that are open to the general public and that sell  
22 tickets for admission. For the purposes of this item, rodeo events do not  
23 include generally accepted agricultural practices associated with  
24 livestock and equine operations.

25 (iii) The cultivation of cannabis as defined in section 13-3401 or  
26 marijuana as defined in section 13-3401 or 36-2801.

27 (b) "Mining" has the same meaning prescribed in section 27-301.

28 3. Prevent, restrict or otherwise regulate the use or occupation of  
29 land or improvements for agricultural composting, if the tract is five or

1 more contiguous commercial acres. An agricultural composting operation  
2 shall notify in writing the board of supervisors and the nearest fire  
3 department of the location of the composting operation. If the nearest  
4 fire department is located in a city, town or fire district where the  
5 agricultural composting is not located, the agricultural composting  
6 operation shall also notify in writing the fire district in which the  
7 operation is located. Agricultural composting is subject to sections  
8 3-112 and 49-141. For the purposes of this paragraph, "agricultural  
9 composting" has the same meaning prescribed in section 9-462.01,  
10 subsection G.

11 4. Prevent, restrict or otherwise regulate the otherwise lawful  
12 discharge of a firearm or air gun or use of archery equipment on a private  
13 lot or parcel of land that is not open to the public on a commercial or  
14 membership basis.

15 5. PREVENT, RESTRICT OR OTHERWISE REGULATE THE USE OR OCCUPATION OF  
16 LAND OR IMPROVEMENTS FOR THE CONSTRUCTION AND OPERATION OF A THERMAL OR  
17 NONTHERMAL ELECTRIC GENERATING UNIT IF THE OWNER OR OPERATOR OF THE  
18 ELECTRIC GENERATING UNIT HAS APPLIED FOR AND RECEIVED A CERTIFICATE OF  
19 ENVIRONMENTAL COMPATIBILITY FOR THE PROPOSED ELECTRIC GENERATING UNIT FROM  
20 THE POWER PLANT AND TRANSMISSION LINE SITING COMMITTEE, AND THE  
21 CERTIFICATE IS AFFIRMED AND APPROVED BY AN ORDER OF THE CORPORATION  
22 COMMISSION PURSUANT TO TITLE 40, CHAPTER 2, ARTICLE 6.2. [THE  
23 CONSTRUCTION AND OPERATION OF A THERMAL OR NONTHERMAL ELECTRIC GENERATING  
24 UNIT PURSUANT TO THIS PARAGRAPH SHALL COMPLY WITH ALL AIR QUALITY  
25 STANDARDS PRESCRIBED BY TITLE 49, CHAPTER 3 AND WITH ALL DECOMMISSIONING,  
26 SITE RESTORATION, FINANCIAL ASSURANCE AND LIABILITY INSURANCE REQUIREMENTS  
27 PRESCRIBED BY TITLE 30.

28 B.] THE OWNER OR OPERATOR OF A [PROPOSED] NONTHERMAL ELECTRIC  
29 GENERATING UNIT [THAT IS NOT SUBJECT TO THE REQUIREMENTS OF TITLE 40,  
30 CHAPTER 2, ARTICLE 6.2] MAY VOLUNTARILY APPLY FOR A CERTIFICATE OF  
31 ENVIRONMENTAL COMPATIBILITY PURSUANT TO [THIS] [SUBSECTION A.] PARAGRAPH  
32 [5 OF THIS SECTION, IF THE PROPOSED NONTHERMAL ELECTRIC GENERATING UNIT  
33 WILL BE LOCATED IN EITHER OF THE FOLLOWING AREAS:

34 1. ON PRIVATE LAND THAT IS LOCATED IN A COUNTY WITH A POPULATION OF  
35 MORE THAN FOUR HUNDRED THOUSAND PERSONS BUT LESS THAN SIX HUNDRED THOUSAND  
36 PERSONS. IF THE PRIVATE LAND IS FORMER STATE LANDS AS DEFINED IN SECTION  
37 37-101, THE OWNER OR OPERATOR OF THE PROPOSED NONTHERMAL ELECTRIC  
38 GENERATING UNIT MUST HAVE ACQUIRED THE FORMER STATE LANDS AT A PUBLIC  
39 AUCTION THAT WAS OPEN TO ALL ELIGIBLE BIDDERS FROM ALL INDUSTRIES AND  
40 COMMERCIAL LAND USES AND THE COMMISSIONER OF THE STATE LAND DEPARTMENT MAY  
41 NOT HAVE TAKEN, AT ANY POINT DURING THE PUBLIC AUCTION OR BEFORE THE  
42 PUBLIC AUCTION, ANY ACTION, INCLUDING IMPOSING ANY RESTRICTIONS OR  
43 QUALIFICATIONS ON ELIGIBLE BIDDERS OR IMPOSING ANY REQUIREMENTS OR  
44 MINIMUMS ON APPRAISALS, THAT HAD THE EFFECT OF INCREASING THE PROBABILITY  
45 OF A BIDDER FROM ONE INDUSTRY OR COMMERCIAL LAND USE WINNING THE PUBLIC  
46 AUCTION INSTEAD OF A BIDDER FROM ANOTHER INDUSTRY OR COMMERCIAL LAND USE.

1        2. ON STATE LANDS AS DEFINED IN SECTION 37-101 THAT ARE LOCATED IN  
2 A GROUNDWATER BASIN FROM WHICH GROUNDWATER MAY BE TRANSPORTED PURSUANT TO  
3 TITLE 45, CHAPTER 2, ARTICLE 8.1.]

4        ~~[B.]~~ [C.] A nonconforming business use within a district may expand  
5 if the expansion does not exceed one hundred ~~per-cent~~ PERCENT of the area  
6 of the original business.

7        ~~[C.]~~ [D.] For the purposes of subsection A, paragraph 2 of this  
8 section, mining does not include aggregate mining operations in an  
9 aggregate mining operations zoning district established pursuant to this  
10 section. The board of supervisors of any county with a population of more  
11 than two million persons shall designate and establish the boundaries of  
12 an aggregate mining operations zoning district on the petition of at least  
13 one hundred persons who reside within one-half mile of an existing  
14 aggregate mining operation. In addition, the board of supervisors of any  
15 county may establish, in its discretion and on the board's initiative, one  
16 or more aggregate mining operations zoning districts. Aggregate mining  
17 operations zoning districts may only be located in areas that are  
18 inventoried and mapped as areas of known reserves or in areas with  
19 existing aggregate mining operations. Subject to subsections ~~[F-and]~~ F  
20 ~~[AND G]~~ of this section, a county and the state mine inspector may jointly  
21 adopt, as internal administrative regulations, reasonable aggregate mining  
22 operations zoning district standards limited to permitted uses, procedures  
23 for approval of property development plans and site development standards  
24 for dust control, height regulations, setbacks, days and hours of  
25 operation, off-street parking, screening, noise, vibration and air  
26 pollution control, signs, roadway access lanes, arterial highway  
27 protection and property reclamation for which aggregate mining operations  
28 are not otherwise subject to federal, state or local regulation or a  
29 governmental contractual obligation. Regulations ~~THAT ARE~~ jointly adopted  
30 pursuant to this subsection by the county and the state mine inspector  
31 shall not prohibit the activities included in the definition of mine  
32 pursuant to section 27-301, paragraph 8 or duplicate, conflict with or be  
33 more stringent than applicable federal, state or local laws.

34        ~~[D.]~~ [E.] The board of supervisors of any county that establishes  
35 an aggregate mining operations zoning district shall appoint an aggregate  
36 mining operations recommendation committee for the district. The  
37 committee consists of not more than seven operators, or representatives of  
38 operators, of active aggregate mining operations in any district within  
39 the county and an equal number of private citizens, who are not operators,  
40 who are not employed by operators and who do not represent operators,  
41 residing within three miles of the boundaries of aggregate mining  
42 operations or a proposed aggregate mining operation in the district for  
43 which the committee is established. The initial members appointed to the  
44 committee shall be deemed the primary members, and the board of  
45 supervisors shall appoint not more than five alternate members who  
46 represent operators and shall appoint not more than five alternate members  
47 who are private citizens. Alternate members may serve at meetings of the

1 committee when a primary member is unable to attend. An aggregate mining  
2 operator may serve on more than one committee in the same county. The  
3 board of supervisors shall determine the length of terms of members of the  
4 committee and shall stagger the initial appointments so that not all  
5 members' terms expire at the same time. Members of the committee who no  
6 longer qualify for membership as provided by this subsection are subject  
7 to removal and replacement by the board of supervisors. The committee  
8 shall elect a member who is an aggregate mining operator to serve as  
9 chairperson for the first year in which the committee is created. For  
10 each year thereafter, the chairperson shall be elected by the members of  
11 the committee with a member who is a private citizen and a member who is  
12 an aggregate mining operator serving as chairperson in alternate years.  
13 The committee is subject to the open meeting requirements of title 38,  
14 chapter 3, article 3.1.

15 ~~[F.]~~ [E.] Within ninety days after an aggregate mining operations  
16 recommendation committee is established, the committee shall notify all  
17 existing aggregate mining operators in the district of the application of  
18 this section and title 27, chapter 3, article 6 to the aggregate mining  
19 operation. In addition, the committee shall:

20 1. By a majority vote of all members make recommendations to the  
21 board of supervisors for aggregate mining zoning districts and  
22 administrative regulations as provided in this section. The board of  
23 supervisors may adopt or reject the recommendations but may not make any  
24 modifications to the recommendations unless the modification is approved  
25 by a majority of the members of the recommendation committee.

26 2. Serve as a forum for mediation of disputes between members of  
27 the public and aggregate mining owners or operators. If the committee is  
28 unable to resolve a dispute, the committee shall transmit the matter to  
29 the state mine inspector, with written findings and recommendations, for  
30 further action.

31 3. Hear written complaints filed with the state mine inspector  
32 regarding alleged material deviations from approved community notices for  
33 aggregate mining operations and make written recommendations to the state  
34 mine inspector pursuant to section 27-446.

35 ~~[F.]~~ [G.] Any administrative regulations adopted by a board of  
36 supervisors pursuant to this section are not effective until the  
37 regulations are approved by the state mine inspector. The STATE MINE  
38 inspector may disapprove the administrative regulations adopted by the  
39 board of supervisors only if they duplicate, conflict with or are more  
40 stringent than applicable federal, state or local laws, rules or  
41 regulations. If the STATE MINE inspector disapproves the administrative  
42 regulations, the STATE MINE inspector must provide written reasons for the  
43 disapproval. The STATE MINE inspector shall not make any modification to  
44 the administrative regulations as adopted by the board of supervisors  
45 unless the modification is approved by a majority of the members of the  
46 board of supervisors.

1       ~~[G.]~~ [H.] A person or entity is subject to this chapter if the use  
2 or occupation of land or improvements by the person or entity consists of  
3 or includes changing, remanufacturing or treating human sewage or sludge  
4 for distribution or resale. These activities are not exempt from this  
5 chapter under subsection A, paragraph 2 of this section.

6       ~~[H.]~~ [I.] A county shall not require as a condition for a permit or  
7 for any approval, or otherwise cause, an owner or possessor of property to  
8 waive the right to continue an existing nonconforming outdoor advertising  
9 use or structure without acquiring the use or structure by purchase or  
10 condemnation and paying just compensation unless the county, at its  
11 option, allows the use or structure to be relocated to a comparable site  
12 in the county with the same or a similar zoning classification, or to  
13 another site in the county acceptable to both the county and the owner of  
14 the use or structure, and the use or structure is relocated to the other  
15 site. The county shall pay for relocating the outdoor advertising use or  
16 structure, including the cost of removing and constructing the new use or  
17 structure that is at least the same size and height. This subsection does  
18 not apply to county rezoning of property at the request of the property  
19 owner to a more intensive zoning district.

20       ~~[I.]~~ [J.] For the purposes of this section:

21       1. "Aggregate" has the same meaning prescribed in section 27-441.

22       2. "Aggregate mining" has the same meaning prescribed in section  
23 27-441.

24       3. "Aggregate mining operation" means property that is owned,  
25 operated or managed by the same person for aggregate mining.

26       4. "Operators" means persons who are actively engaged in aggregate  
27 mining operations within the zoning district or proposed zoning district  
28 and who have given notice to the state mine inspector pursuant to section  
29 27-303.

30       Sec. 2. Section 40-360.03, Arizona Revised Statutes, is amended to  
31 read:

32       40-360.03. Application for certificate of environmental  
33       compatibility before construction of facilities;  
34       electronic format; rules; exception

35       A. Except as provided in ~~subsection~~ **SUBSECTIONS B AND C** of this  
36 section, every utility that plans to construct a plant or transmission  
37 line, or both, in this state shall first file with the commission an  
38 application for a certificate of environmental compatibility. The  
39 application shall be in a form prescribed by the commission and shall be  
40 accompanied by information with respect to the proposed type of facilities  
41 and description of the site, including the areas of jurisdiction affected  
42 and the estimated cost of the proposed facilities and site. The  
43 application shall also be accompanied by a receipt that evidences payment  
44 of the appropriate fee required by section 40-360.09. The commission shall  
45 promptly refer the application and accompanying information to the  
46 chairman of the committee for the committee's review and decision. The  
47 application and accompanying information may be submitted to the

1 commission in an electronic format. The commission may adopt rules to  
2 accept electronic filings under this section and to ensure that proper  
3 notice is provided electronically to interested parties.

4 B. A utility may replace a conductor or wire on a transmission line  
5 or may replace an existing transmission line structure or structures with  
6 a new transmission line structure or structures without seeking a new  
7 certificate of environmental compatibility and without holding a hearing  
8 under this article if the replacement is on a transmission line that  
9 previously received a certificate of environmental compatibility or that  
10 was in use or authorized before August 13, 1971. All replacement  
11 conductors or structures shall comply with the terms and conditions of the  
12 applicable existing certificate of environmental compatibility.

13 C. A UTILITY MAY REPLACE AN EXISTING PLANT WITH A REPLACEMENT PLANT  
14 OR CONSTRUCT A NEW PLANT IMMEDIATELY ADJACENT TO AN EXISTING PLANT WITHOUT  
15 FILING FOR OR RECEIVING A NEW CERTIFICATE OF ENVIRONMENTAL COMPATIBILITY  
16 FOR THE NEW OR REPLACEMENT PLANT IF ALL OF THE FOLLOWING CONDITIONS ARE  
17 MET:

18 1. THE UTILITY PROVIDES TO THE COMMISSION THIRTY DAYS' WRITTEN  
19 NOTICE AND HOLDS AT LEAST ONE PUBLIC COMMENT SESSION IN THE COUNTY WHERE  
20 THE EXISTING PLANT IS LOCATED.

21 2. THE NEW OR REPLACEMENT PLANT IS LOCATED ON OR IMMEDIATELY  
22 ADJACENT TO THE SITE OF A PLANT THAT HAS PREVIOUSLY RECEIVED A CERTIFICATE  
23 OF ENVIRONMENTAL COMPATIBILITY PURSUANT TO THIS ARTICLE OR THAT WAS IN USE  
24 OR AUTHORIZED BEFORE AUGUST 13, 1971.

25 3. THE AGGREGATE NAMEPLATE RATING OF ALL PLANTS THAT WILL BE  
26 LOCATED ON AND IMMEDIATELY ADJACENT TO THE SITE AFTER CONSTRUCTION WILL BE  
27 EQUAL TO OR GREATER THAN THE AGGREGATE NAMEPLATE RATING OF ALL EXISTING  
28 PLANTS LOCATED ON AND IMMEDIATELY ADJACENT TO THE SITE BEFORE  
29 CONSTRUCTION.

30 <<Sec. 3. Section 48-3609.01, Arizona Revised Statutes, is amended  
31 to read:

32 48-3609.01. Watercourse master plans; definition

33 A. If a district organized pursuant to this chapter has completed a  
34 watercourse master plan ~~[which]~~ [THAT] includes one or more  
35 watercourses~~[-]~~ and if the plan has been adopted by the board or by any  
36 other jurisdiction in that river or drainage system, the board and the  
37 governing body of each jurisdiction may adopt and shall enforce uniform  
38 rules for that river or drainage system within the jurisdiction using  
39 criteria that meet or exceed criteria adopted by the director of water  
40 resources pursuant to section 48-3605, subsection A.

41 B. During the preparation of a watercourse master plan, record  
42 owners of real property in and immediately contiguous to the watercourse  
43 or watercourses included in the planning shall be publicly notified by the  
44 board or its agents so that the owners may have input to the planning  
45 process. In addition, aggregate mining operations recommendation  
46 committees organized pursuant to section 11-812, subsection ~~[D]~~ [E], if  
47 any, shall be notified.

1 C. All watercourse master plans shall consider recharge techniques,  
2 including gabions, swales, dry wells, sand tanks and small dams.

3 D. This section does not apply to any city or town ~~[which]~~ [THAT]  
4 has adopted a resolution assuming floodplain management and regulation  
5 within its area of jurisdiction as provided in section 48-3610 ~~[prior to]~~  
6 [BEFORE] July 1, 1990.

7 E. A district that has prepared a watercourse master plan for a  
8 river may participate in the planning, establishment and operation of a  
9 recreational corridor channelization district established pursuant to  
10 chapter 35 of this title.

11 F. For the purposes of this section, "watercourse master plan"  
12 means a hydraulic plan for a watercourse that examines the cumulative  
13 impacts of existing development and future encroachment in the floodplain  
14 and future development in the watershed on potential flood damages and  
15 that establishes technical criteria for subsequent development so as to  
16 minimize potential flood damages for all flood events up to and including  
17 the one hundred-year flood.>>

18 Enroll and engross to conform

19 Amend title to conform

THOMAS "T.J." SHOPE

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